ANNEX "II"

Federal Legislative List and the Concurrent List — Pre-Eighteenth Amendment

FOURTH SCHEDULE

[Article 70 (4)]

FEDERAL LEGISLATIVE LIST

PART I

1. The defence of the Federation or any part thereof in peace or war; the military, naval and air forces of the Federation and any other armed forces raised or maintained by the Federation ; any armed forces which are not forces of the Federation but are attached to or operating with any of the Armed forces of the Federation including civil Armed Forces; Federal Intelligence Bureau; preventive detention for reasons of State connected with defence, external affairs, or the security of Pakistan or any part thereof ; persons subjected to such detention; industries declared by Federal law to be necessarygor the purpose of defence or for the prosecution of war.

2. Military, naval and air force works; local self-government in cantonment areas, the constitution and powers within such areas of cantonment authorities, the regulation of house accommodation in such areas, and the delimitation of such areas.

3. External affairs; the implementing of treaties and agreements, including educational and cultural pacts and agreements, with other countries; extradition, including the surrender of criminals and accused persons to Governments outside Pakistan.

4. Nationality, citizenship and naturalisation.

5. Migration from or into, or settlement in, a Province or the Federal Capital.

6. Admission into, and emigration and expulsion from, Pakistan, including in relation thereto the regulation of the movements in

Pakistan of persons not domiciled in Pakistan, pilgrimages to places beyond Pakistan.

7. Posts and telegraphs, including telephones, wireless, broadcasting and other like forms of communications; Post Office Saving Bank.

8. Currency, coinage and legal tender.

9. foreign exchange; cheques, bills of exchange, promissory notes and other like instruments.

10. Public debt of the Federation, including the borrowing of money on the security of the Federal Consolidated Fund; foreign loans and foreign aid.

11. Federal Public Services and Federal Public Service Commission.

12. Federal pensions, that is to say, pensions payable by the Federation or out of the Federal Consolidated Fund.

13. Federal Ombudsman.

14. Administrative Courts and Tribunals for Federal subjects.

15. Libraries, museums, and similar institutions controlled or financed by the Federation.

16. Federal agencies and institutes for the following purposes, that is to say, for research, for professional or technical training, or for the promotion of special studies.

17. Education as respects Pakistani students in foreign countries and foreign students in Pakistan.

18. Nuclear energy, including—

(a) mineral resources necessary for the generation of nuclear energy;

(b) the production of nuclear fuels and the generation and use of nuclear energy; and

(c) ionizing radiations [1][; and]

[1][(d) boilers.]

19. Port quarantine, seamen's and marine hospitals and hospitals connected with port quarantine.

20. Maritime shipping and navigation, including shipping and navigation on tidal waters; Admiralty jurisdiction.

21. Major ports, that is to say, the declaration and delimitation of such ports, and the constitution and powers of port authorities therein.

22. Aircraft and air navigation; the provision of aerodromes; regulation and organisation of air traffic and of aerodromes.

23. Lighthouses, including lightships, beacons and other provisions for the safety of shipping and aircraft.

24. Carriage of passengers ançl goods by sea or by air.

25. Copyright, inventions, designs, trade-marks and merchandise marks.

26. Opium so far as regards sale for export.

27. Import and export across customs frontiers as defined by the Federal Government, inter-provincial trade and commerce, trade and commerce with foreign countries; standard of quality of goods to be exported out of Pakistan.

28. State Bank of Pakistan; banking, that is to say, the conduct of banking business by corporations other than corporations owned or controlled by a Province and carrying on business only within that Province.

29. The law of insurance, except as respects insurance undertaken by a Province, and the regulation of the conduct of insurance business, except as respects business undertaken by a

Province; Government insurance, except so far as undertaken by a Province by virtue of any matter within the legislative competence of the Provincial Assembly.

30. Stock exchanges and futures markets with objects and business not confined to one Province.

31. Corporations, that is to say, the incorporation, regulation and winding-up of trading corporations, including banking, insurance and financial corporations, but not including corporations owned or controlled by a Province and carrying on business only within that Province, or cooperative societies, and of corporations, whether trading or not, with objects not confined to a Province, but not including universities.

32. National Planning and national economic coordination including planning andcoordination of scientific and technological research.

33. State lotteries.

34. National highways and strategic roads.

35. Federal surveys including geological surveys and Federal meteorological organisations.

36. Fishing and fisheries beyond territorial waters.

37. Works, lands and buildings vested in, or in the possession of Government for the purposes of the Federation (not being military, naval or air force works), but, as regards property situate in a Province, subject always to Provincial legislation, save in so far as Federal law otherwise provides.

38. Census

39. Establishment of standards of weights and measures.

40. Extension of the powers and jurisdiction of members of a police force belonging to any Province to any area in another Province, but not so as to enable the police of one Province to

exercise powers and jurisdiction in another Province without the consent of the Government of that Province; extension of the powers and jurisdiction of members of a police force belonging to any Province to railway areas outside that Province.

41. Elections to the office of President, to the National Assembly, the Senate and the Provincial Assemblies; Chief Election Commissioner and Election Commissions.

42. The salaries, allowances and privileges of the President, Speaker and Deputy Speaker of the National Assembly, Chairman and Deputy Chairman of the Senate, Prime Minister, Federal Ministers, Ministers of State, the salaries, allowances and privileges of the members of the Senate and the National Assembly; and the punishment of persons who refuse to give evidence or produce documents before committees thereof.

43. Duties of customs, including export duties.

44. Duties of excise, including duties on salt, but not including duties on alcoholic liquors, opium and other narcotics.

45. Duties in respect of succession to property.

46. Estate duty in respect of property.

47. Taxes on income other than agricultural income.

48. Taxes on corporations.

[1][49. Taxes on the sales and purchases of goods imported, exported, produced, manufactured or consumed.]

50. Taxes on the capital value of the assets, not including taxes

on capital gains on immovable property.

51. Taxes on mineral oil, natural gas and minerals for use in generation of nuclear energy.

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[1]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 19, for the "original entry 49" (*w. e. f.* the 13th September, 1976).

52. Taxes and duties on the production capacity of any plant, machinery, undertaking, establishment or installation in lieu of the taxes and duties specified in entries 44, 47, 48 and 49 or in lieu of any one or more of them.

53. Terminal taxes on goods, or passengers carried by railway, sea or air; taxes on their fares and freights.

54. Fees in respect of any of the matters in this Part, but not including fees taken in any court.

55. Jurisdiction and powers of all courts, except the Supreme Court, with respect to any of the matters in this List and, to such extent as is expressly authorised by or under the Constitution, the enlargement of the jurisdiction of the Supreme Court, and the conferring thereon of supplemental powers.

56. Offences against laws with respect to any of the matters in this Part.

57. Inquiries and statistics for the purposes of any of the matters in this Part.

58. Matters which under the Constitution are within the legislative competence of [2][Majlis-e-Shoora (Parliament)] or relate to the Federation.

59. Matters incidental or ancillary to any matter enumerated in this Part.

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[1]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 19, for the "original entry 49" (*w.e.f.* the 13th September, 1976).

[2]See foot note 3 on page 5, supra.

PART II

1. Railways.

2. Mineral oil and natural gas; liquids and substances declared by Federal law to be dangerously inflammable.

3. Development of industries, where development under Federal control is declared by Federal law to be expedient in the public interest; institutions, establishments, bodies and corporations adm. inistered or managed by the Federal Government immediately before the Commencing day, including the [1][Pakistan Water and Power Development Authority and the Pakistan Industrial Development Corporation]; all undertakings, projects and schemes of such institutions, establishments, bodies and corporations, industries, projects and undertakings owned wholly or partially by the Federation or by a corporation set up by the Federation.

4. Council of Common Interests.

5. Fees in respect of any of the matters in this Part but not including fees taken in any court.

6. Offences against laws with respect to any of the matters in this Part.

7. Inquiries and statistics for the purposes of any of the matters in this Part.

8. Matters incidental or ancillary to any matter enumerated in this Part.

Concurrent Legislative List

1. Criminal law, including all matters included in the Pakistan Penal Code on the commencing day, but excluding offences against laws with respect to any of the matters specified in the Federal Legislative List and excluding the use of naval, military and air forces in aid of civil power.

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[1]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 19, for the "West Pakistan Water and Power Development Authority and the West Pakistan Industrial Development Corporation" (*w.e.f.* the 13m September, 1976).

2. Criminal procedure, including all matters included in the Code of Criminal Procedure, on the commencing day.

3. Civil procedure, including the law of limitation and all matters included in the Code of Civil Procedure on the commencing day; the recovery in a Province or the Federal Capital of claims in respect of taxes and other public demands, including arrears of land revenue and sums recoverable as such, arising, outside that Province.

4. Evidence and oath; recognition of laws, public acts and records and judicial proceedings.

5. Marriage and divorce, infants and minors; adoption.

6. Wills, intestacy and succession, save as regards agricultural land.

7. Bankruptcy and insolvency, administrators-general and official trustees.

8. Arbitration.

9. Contracts, including partnership, agency, contracts of carriage, and other special forms of contracts, but not including contracts relating to agricultural land.

10. Trust and trustees.

11. Transfer of property other than agricultural land, registration of deeds and documents.

12. Actionable wrongs, save in so far as included in laws with respect to any of the matters specified in the Federal Legislative List.

13. Removal of prisoners and accused persons from one Province to another Province.

14. Preventive detention for reasons connected with the maintenance of public order, or the maintenance of supplies and

services essential to the community; persons subjected to such detention.

15. Persons subject to preventive detention under Federal authority.

16. Measures to combat certain offences committed in connection with matters concerning the Federal and Provincial Governments and the establishment of a police force for that purpoe.

17. Arms, fire-arms and ammunition.

18. Explosives.

19. Opium, so far as regards cultivation and manufacture.

20. Drugs and medicines.

21. Poisons and dangerous drugs.

22. Prevention of the extension from one Province to another of infectious or contagious diseases or pests affecting men, animals or plants.

23. Mental illness and mental retardation, including places for the reception or treatment of the mentally ill and mentally retarded.

24. Environmental pollution and ecology.

25. Population planning and social welfare.

26. Welfare of labour; conditions of labour, provident funds; employers' liability and workmen's compensation, health insurance including invalidity pensions, old age pensions.

27. Trade unions; industrial and labour disputes.

28. The setting-up and carrying on of labour exchanges, employment information bureaus and training establishments.

29. Boilers.

30. Regulation of labour and safety in mines, factories and oil-fields.

31. Unemployment insurance.

32. Shipping and navigation on inland waterways as regards mechanically propelled vessels, and the rule of the road on such waterways; carriage of passengers and goods on inland waterways.

33. Mechanically propelled vehicles.

34. Electricity.

35. Newspapers, books and printing presses.

36. Evacuee property.

37. Ancient and historical monuments, archaeological sites and remains.

38. Curriculum, syllabus, planning, policy, centers of excellence and standards of education.

39. Islamic education.

40. Zakat.

[1][41. Production, censorship and exhibition of cinematograph films.]

42. Tourism.

43. Legal, medical and other professions.

[2][43A. Auqaf].

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[1]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 19, for the "original entry 41" (*w.e.f.* the 13th September, 1976).

[2]Entry 43A ins. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 13. (*w.e.f.* the 21st November, 1975).

44. Fees in respect of any of the matters in this List, but not including fees taken in any court.

45. Inquiries and statistics for the purpose of any of the matters in this List.

46. Offences against laws with respect to any of the matters in this List: jurisdiction and powers of all courts except the Supreme Court, with respect to any of the matters in this List.

47. Matters incidental or ancillary to any matter enumerated in this List.
